

Die Veneris, 26. die Februarii, 1640.

UPon the Report of the Right Honourable the Lords Commissioners appointed to consider of the way of Vacating of the Judgment in the Exchequer concerning Ship-money, It was Ordered by the Lords Spiritual and Temporal in the High Court of Parliament assembled, That the Lord Keeper, or the Master of the Rolls, the two Lord Chief Justices, and the Lord Chief Baron, and likewise the Chief Clerk of the Star-Chamber, shall bring into the Upper House of Parliament the Record in the Exchequer of the Judgment in *Mr. Hampdens Case* concerning Ship-money; and also the several Rolls in each several Court of Kings Bench, Common-Pleas, Exchequer, Star-Chamber, and Chancery, wherein the Judges extrajudicial Opinions in the Cases made touching Ship-money be entered, and that a *Vacat* shall be made in the Upper House of Parliament of the said several Records. And likewise the Judgment of Parliament touching the illegality of the said Judgments in the Exchequer, and the proceedings thereupon, and touching the illegality of the extrajudicial Opinions of the Judges in the said several Courts concerning Ship-money, be annexed and apostilled unto the same: And that a Copy of the Judgment of the Parliament concerning the illegality of the said Judgment in the Exchequer, and the said extrajudicial Opinions of the said Judges concerning Shipmoney, be delivered to the several Judges of Assize; And that they be required to publish the same at the Assizes in each several County within their Circuits, and to take care that the same be entered and enrolled by the several Clerks of Assizes; And if any Entry be made by any *Custos Rotulorum*, or Clerk of Assize, of the said Judgment in the Exchequer, or of the said extrajudicial Opinions of the Judges, that several *Vacats* be made thereof, *per judicium in Parlamento*: And that an Act of Parliament be prepared against the said Judgment and extrajudicial Opinions, and against the Proceedings touching Ship-money.

Memorandum quod Vicesimo septimo die Febr. 1640. Annoque regni Regis Domini nostri Caroli Anglie decimo sexto:

VAcatur istud Recordum & Judicium inde habitum per considerationem & judicium Dominorum Spiritualium & Temporalium in Curia Parliamenti. & in rotulamentum ejusdem cancellatur.

Memorandum quod Vicesimo septimo die Feb. præd.

Istud Irrotul. & omnia & singula in eodem contenta & expressa vacantur per judicium Dominorum Spiritualium & Temporalium in Curia Parliamentum.

And that all the Rolls be rased cross with a Pen, and subscribed with the Clerk of the Parliaments hand. All which was accordingly done in open Court.